

24STCV28541 24STCV28541

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 24STCV28541 Hearing Date: August 7, 2026 Dept: 406

ALLEN GRAVES,

Plaintiff,

v.

ALL AMERICAN CONSTRUCTION AND ROOFING,
INC.

Defendant.

Case No.: 24STCV28541

Hearing Date: August 7, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel responses
to discovery (CRS# 5781, 7098, 6743)

BACKGROUND

On October 31, 2024, Plaintiff Allen Graves filed this action against Defendant All American Construction and Roofing, Inc., asserting (1) breach of contract, (2) negligent damage to property, (3) breach of the covenant of good faith and fair dealing, and (4) breach of the implied covenant to perform work in a good and workmanlike

manner.

On June 22, 2026, Plaintiff filed the instant three motions to compel verified responses to interrogatories and requests for production. Defendant filed oppositions on July 27, 2026. Plaintiff filed replies on July 31, 2026.

LEGAL STANDARD

Discovery responses are due 30 days after service of the requests, unless the parties stipulate or the court orders otherwise. (Code Civ. Proc., §§ 2030.260(a), 2031.260(a), 2033.250(a).) If a responding party fails to respond in time, the propounding party may move for an order compelling the responses or deeming matters admitted. (Id., §§ 2030.290(b), 2031.300(b), 2033.280(b).) The responding party also waives all objections and the right to produce writings under section 2030.230. (Id., §§ 2030.290(a), 2031.300(a), 2033.280(a).)

DISCUSSION

Plaintiff propounded the subject discovery on December 10, 2024. (Treu Decl. ¶¶ 2-4.) To date, Defendant has not served any response. (Id., ¶¶ 5, 10.) Defendant consents to an order compelling verified responses by August 14, 2026. (Opp. 5:19-21.) However, Defendant opposes the sanctions request because counsel lost contact with Defendant's CEO, Ilan Eli, and was thus unable to obtain verifications. (Ralls Decl. ¶¶ 2, 7.) While this may absolve Defendant's counsel, Defendant provides no substantial justification for its own failure to abide by its discovery obligations. Mr. Eli's failure to verify the responses and refusal to cooperate with defense counsel is attributable to Defendant. Therefore, sanctions are warranted against Defendant only.

CONCLUSION

Plaintiff's motions to compel are GRANTED. Defendant shall provide verified responses without objection, except as to privacy or privilege, by August 14, 2026. The Court sanctions Defendant only in the amount of \$2,000, to be paid within 30 days of today.